

Here, the application for late filed claim was submitted within one year of when the cause of action accrued and was therefore timely. This petition was filed within six months of when respondent denied the late-claim application and is likewise timely. In support of her burden, petitioner presents the declaration of counsel Sandra Duritza who presents several exhibits, including several pleadings in the related personal injury case, the notice of claim, respondent's rejection, application for leave to present the late claim and rejection. However, no evidence is submitted to support petitioner's burden of showing mistake, inadvertence, surprise, or excusable neglect. Petitioner falls short of her burden of proof so the burden does not shift to respondent to show prejudice.

Based on the foregoing, the motion is denied.

21. S-CV-0056823 In Re the Petition of US Night Vision Corp.

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Second amended petition for: 1) court supervision of voluntary winding up proceeding; and 2) removal of John Barbieri as a director of US Night Vision corporation

Petitioners Chris Byrd and US Night Vision corporation petition this court for court supervision of voluntary winding up proceeding and removal of John Barbieri as a director of US Night Vision corporation. Respondent John Barbieri opposes the petition substantively and also objects on the grounds the operative second amended petition, filed March 12, 2026, was not properly served on respondent, is not accompanied by evidence, and suggests a future memorandum will be filed which does include supporting evidence.

Based on the foregoing procedural deficiencies, the second amended petition is denied without prejudice.

22. S-CV-0056825 In Re the Petition of Forward Financing LLC

Moving party is advised the notice of motion must include the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition to confirm arbitration award

The unopposed petition to confirm the arbitration award is granted as prayed. The court confirms the final award entered on November 10, 2025. Judgment is entered in favor of Forward Financing LLC, and against David Miller dba Customer Door Specialists; David Miller, an individual for \$35,260.00 in principal, and \$618.91 in court costs, for a total judgment amount of \$35,878.91.